



POLICE DEPARTMENT

March 1, 2013

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ernst Hyacinthe
Tax Registry No. 936791
Manhattan Court Section
Disciplinary Case No. 2012-6841

The above-named member of the Department appeared before the Court on January 15, 2013, charged with the following:

1. Said Police Officer Ernst Hyacinthe, while off-duty and assigned to the 100th Precinct, on or about July 11, 2011, was discourteous toward on-duty New York City Police Department Sergeant Douglas Goldstein, Tax No. 906353, to wit: said Police Officer did become uncooperative toward said Sergeant after said Sergeant requested that said Police Officer identify himself. *(As amended)*

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT GENERAL
GENERAL REGULATIONS

2. Said Police Officer Ernst Hyacinthe, while off duty and assigned to the 100th Precinct, on or about July 11, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to properly safeguard his New York City Police Department shield and identification card. *(As amended)*

P.G. 203 10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

3. Said Police Officer Ernst Hyacinthe, while off-duty and assigned to the 100th Precinct, on or about July 11, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to identify himself to New York City Police Department Sergeant Douglas Goldstein, Tax No. 906353, after said Sergeant requested that said Police Officer identify himself.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT PROHIBITED CONDUCT
GENERAL REGULATIONS

4. Said Police Officer Ernst Hyacinthe, while on-duty and assigned to the Manhattan Court Section, on or about September 19, 2011, did wrongfully cause inaccurate entries to be made in Department records, to wit: said Police Officer did file a Complaint Report containing inaccurate information.

P.G. 203-05, Page 1, Paragraph 4 PERFORMANCE ON DUTY GENERAL
GENERAL REGULATIONS

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT PROHIBITED CONDUCT
GENERAL REGULATIONS

5. Said Police Officer Ernst Hyacinthe, while off-duty and assigned to the Manhattan Court Section, on or about and between August 20, 2011 and August 21, 2011, did engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer did fail to safeguard his New York City Police Department identification card.

P.G. 203-10, Page 1, Paragraph 5 PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by Javier Seymore, Esq., Department Advocate's Office. Respondent was represented by Michael Martinez, Esq., Worth, Longworth & London LLP.

Respondent, through his counsel, pleaded Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent had been a member of the Department for eight years. On July 11, 2011, he was assigned to the 100 Precinct. He had been assigned there for about three weeks.

Respondent was scheduled to work a 4x12 tour on the day in question, but was notified a couple of days prior that he had to be at the Traffic Violations Bureau (TVB) before 1400 hours. In order to be prepared for court, Respondent had to bring all the summonses that were to be heard on that day. The day before his court appearance, however, he realized that he was missing one summons. So, on July 11, 2011, he woke up early and, while off-duty, went to the 100 Precinct station house "to make sure I have everything." He was concerned especially about traffic on the Van Wyck Expressway, as he was driving his private vehicle to the command.

When Respondent was asked what would happen if he went to the TVB unprepared, he answered, "We lose. At the time, we lose about 30 days. We lose, we get penalized."

Respondent testified that when he entered the command, he said hello to the telephone switchboard (TS) operator. The TS operator returned the greeting. Respondent asserted that he stood there and looked at the desk, but did not notice any sergeant.

Respondent stated that he "proceeded to go up the stairs. . . . [J]ust a little maybe fast, but I wasn't rushing." He then stated that he opened the door to go up the stairs but had not reached them yet, when Sergeant Douglas Goldstein came up behind him and asked who he was. Respondent replied, "I'm Officer Hyacinthe."

Respondent testified that Goldstein insisted on asking him who he was, even after he had told him. Respondent had met Goldstein a few times prior to this incident during change of tours. Respondent claimed that he was under the impression that Goldstein was a nice guy, so he thought he was joking at first. When Respondent realized that Goldstein was serious, he "panicked a little bit."

Respondent agreed that Goldstein asked for his identification (ID). He did not have it on him because he had left it in his vehicle. Respondent indicated that he had to pay a toll to get to

the 100 Precinct, and when he removed his wallet from his pocket to pay it, he did not put the wallet back. Respondent advised Goldstein that his wallet, containing his ID, was in his vehicle. He asked Goldstein if he could be escorted to his vehicle so that he could retrieve his ID.

Respondent stated that Goldstein stood there for a little while and then questioned him as to what he was doing there. Goldstein was not satisfied that Respondent was there to pick up summonses. Respondent told Goldstein that he could check the roll call and see that his name was on there. But Goldstein still was not satisfied, so he took Respondent to the juvenile room and told him to stay there.

Respondent asked Goldstein, "Is everything all right? What did I do wrong?" Goldstein answered, "I want you to sit your ass right there." Again Respondent asked Goldstein, "Is everything all right?" Respondent also asked if he could speak to the integrity control officer (ICO).

Respondent admitted that after he asked to speak to the ICO, Goldstein closed the door. Nevertheless, because Respondent believed that Goldstein had gone to verify the roll call, he approached Goldstein and said, "I don't know what I did wrong, but really this situation right here really didn't call for that. I don't know what I did wrong. Can you tell me what I did wrong?" Respondent testified that Goldstein did not answer him, so he went upstairs and spoke to a lieutenant. Respondent told the lieutenant that there was a situation that took place and he did not know what he did wrong. The lieutenant indicated to Respondent that Goldstein would explain.

Respondent testified that he never used profanity toward Goldstein, nor did he threaten him in any way.

Respondent acknowledged that he was allowed at some point to go to his locker and retrieve his materials. He then went to traffic court.

Respondent testified that on August 20, 2011, he was performing weekend training with the United States Naval Reserve. He was in close proximity to his fellow sailors while performing exercises and mustering. Afterward, he could not find his wallet and thought that he had been pickpocketed. His fellow sailors helped him look for the wallet. Respondent found the wallet a few hours later in the gymnasium, in which he had been earlier. Respondent acknowledged at the mitigation that he might have left his wallet in the gym.

Respondent testified that on September 19, 2011, he was assigned to the Manhattan Court Section (MCS). On that day, he was attempting to obtain a new Department MetroCard. He needed to return the old one (Patrol Guide § 219 26 states that Department MetroCards, generally valid for two years, must be turned in when expired). When Respondent checked his wallet, however, the MetroCard was not there. Instead, he had to fill out a complaint report ('61'). Respondent went to the 5 Precinct to file the '61' because that was the closest command to MCS.

Respondent contended that while he filed the complaint report, he was "afraid", "scared", and could not gather his thoughts. He was "nervous, panicking because I was already in trouble and I was worrying about my card that's already missing, and I am trying to remember. I was also under the impression that I was pick-pocketed. I said, you know, if somebody did pick pocket me, I would like to get the person found." Respondent acknowledged that he indicated on the '61' that the MetroCard had been taken from his pocket.

The Department followed up on the complaint report and Respondent was interviewed about it. Respondent stated that when he spoke to the investigators, he started to think that it was

possible he merely might have misplaced his wallet. He testified, "After seeing that, analyzing, and talking to detectives, I said I may have forgotten it."

On cross examination, Respondent acknowledged that when he went to the 100 Precinct on July 11, 2011, he was wearing plainclothes. Respondent denied that his vehicle's engine was running when he parked it in front of the command. He locked the car doors.

Respondent testified that he initially thought Goldstein was joking because he seemed like he always was in a good mood. "I crossed paths with him before," so Respondent thought that Goldstein would know who he was.

Respondent did not recall telling Goldstein, "You know who I am." He admitted that he might have told Goldstein, "Why are you treating me like a perp"? He would have said this because Goldstein was "very aggressive," even after Respondent told him who he was. Respondent denied raising his voice at Goldstein. Respondent also denied being upset that Goldstein had stopped him and asked him to identify himself. Even after Respondent told Goldstein that he left his wallet and ID in his vehicle, and requested an escort, Goldstein was "[a]lmost as close to even put his hand on me."

Respondent "was a bit scared. I thought I was going to get arrested" after Goldstein took him to the juvenile room. Respondent testified he thought that he was going to get arrested because even after he answered all the questions Goldstein had asked him, Goldstein stayed in front of him and would not let him make a move. Respondent then was taken into a room by Goldstein.

Respondent acknowledged that there were other officers present in the vicinity but none attempted to advise Goldstein that Respondent worked there. Respondent testified that when he

was placed in the juvenile room, he was approached by an officer who seemed just as puzzled as Respondent.

Respondent acknowledged that his Department ID card might have been in his wallet on August 20, 2011, when his wallet went missing during the military training. When he filled out the complaint report, he might have told the officer assisting him that he had been pickpocketed. Respondent did not recall saying that he might have lost the wallet. In fact, Respondent believed that he himself might have brought up the word pickpocket.

Respondent testified that he did not tell the investigators initially that he made a mistake on the '61' because he thought he had been pickpocketed. The investigators asked where around the command he had been. Respondent testified, "After the whole thing, and I said, you know what, it's possible that I may have misplaced my wallet because I had been in the gym." Respondent acknowledged that this admission came only after he received a follow-up phone call from investigators.

Upon questioning by the Court, Respondent testified that he thought he was pickpocketed by another person with whom he was doing the training. They had to stand outside in ranks, as well as perform exercises at the gym and classroom training. So they were in different areas.

On re cross examination, Respondent testified that it was perhaps two hours from the time that he noticed his wallet was missing until it was recovered in the gym. He just glanced through his wallet and did not realize anything was missing at the time. His main concern was "my ID."

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on January 10, 2005. Information from his personnel file that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has pleaded Guilty to a variety of disciplinary offenses. The first of these instant specifications arose in July 2011. Respondent went to the 100 Precinct station house while off-duty. He was scheduled to work a 4x12 tour but came in early because he was to be assigned to TVB that day and needed to find a particular summons. He only had been assigned to the 100 Precinct for three weeks, however. When he walked into the building, he continued past the desk. Sergeant Douglas Goldstein did not recognize him and confronted him. At the mitigation hearing, Respondent claimed that he thought Goldstein was joking. The confrontation proceeded, nevertheless, and Respondent failed to cooperate when Goldstein asked him for his Department ID card after Respondent said, in sum and substance, that he was Officer Hyacinthe. Respondent uttered discourteous remarks like, "Why are you treating me like a perp?" He might have said, "You know who I am." He kept asking Goldstein, "What did I do wrong?" when it should have been obvious that he was not identifying himself to his supervisor's satisfaction. Respondent could have said that he was new to the command and it was a misunderstanding. He did not do this.

The matter was compounded by the fact that Respondent left his ID in his car, thinking that he would just run inside and get the summons. Although Respondent's attorney argued on summation that he was being "conscientious" by going to work early to retrieve the summons,

his testimony indicated that he was more concerned about the disciplinary penalty he would incur if that summons case were dismissed in traffic court.

The next series of events began the next month. Respondent was performing drills and training with his Naval Reserve unit. Some of these exercises involved physical activity. At one point, Respondent noticed that his wallet, which had been on his person, was missing. Respondent believed that he might have been pickpocketed, but his wallet turned up in the gym shortly after. His Department-issued MetroCard was not there. To obtain a new one, he had to fill out a complaint report. On it, he wrote that his wallet was removed from his person. That '61' later was the subject of an audit and Respondent was interviewed about it. He admitted that he did not know if he was pickpocketed and that he might have misplaced the wallet.

The Department recommended a penalty of 30 vacation days and Respondent's counsel recommended 15 days. These recommendations are too low.

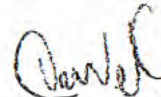
Respondent has had continued problems working in the Department. In October 2009, while assigned to the 77 Precinct, he parked his personal vehicle in a no-stopping-anytime spot and placed his Department parking permit on the dashboard. He also left his firearm in the car, which was towed. When he went to retrieve his car, he did not have his shield. The Department recommended a penalty of 40 vacation days. Respondent pleaded Guilty on February 24, 2011, and the penalty was approved by the Police Commissioner on June 14, 2011. See Case No. 2010-1244. Respondent was transferred to the 100 Precinct. He was there only for three weeks when the incident with Goldstein occurred.

Respondent was given several opportunities to make a new start with the Department and avoid his past problems of abusing his police privileges and lack of attention to safeguarding important property. Instead, three weeks into a new assignment, he was discourteous to a

supervisor who dared challenge him as to his identity. Cf. *Case No. 80864/05*, pp. 17-18 (May 1, 2006) (members must always address supervisors courteously, even when they feel the supervisor is being less than courteous). The incident was serious enough that Respondent was placed on modified duty. Moreover, Respondent continued to have problems securing his property, twice leaving his Department ID where it could have been lost or stolen. Finally, when making a report of his lost MetroCard, he inexplicably insisted that it was stolen from his person, that is, that a fellow member of the military pickpocketed him during training exercises. This came even after Respondent's wallet was found in the gym. It should have been obvious beyond peradventure at that point that he merely had misplaced his wallet.

The idea of progressive discipline indicates that continued misconduct of much the same nature as before should not be met with a lesser penalty. Accordingly, the Court recommends that Respondent be *DISMISSED* from the New York City Police Department, but that his dismissal be held in abeyance for a period of one year, pursuant to Section 14-115 (d) of the Administrative Code of the City of New York, during which time he is to remain on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. The Court further recommends that Respondent forfeit 30 vacation days. See *Case No. 74078/99* (Mar. 3, 2000) (30 days and one year probation given to officer, who had one prior serious incident on record, for changing out of uniform before end of tour and uttering two discourteous remarks to lieutenant: when told to be in uniform when she signed out, she said, in sum and substance, "Everyone get out of my way, I have to sign out in uniform," and "I'm sick and tired of your bullshit").

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner Trials

APPROVED
MAR 10 2013

RAYMOND W. KELLY
POLICE COMMISSIONER

POLICE DEPARTMENT
CITY OF NEW YORK

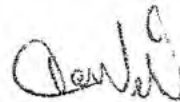
From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ERNST HYACINTHE
TAX REGISTRY NO. 936791
DISCIPLINARY CASE NO. 2012-6841

In 2012, Respondent received an overall rating of 3.5 "Highly Competent/Competent" on his annual performance evaluation. He was rated 2.5 "Competent/Low" in 2010 and 3.0 "Competent" in 2011. [REDACTED]

[REDACTED]
Respondent was placed on Level I Performance Monitoring in April 2009. It was upgraded to Level II in February 2010.

Respondent has been the subject of one prior adjudication. In 2011, he forfeited 40 vacation days for leaving his firearm under the front seat of his personal vehicle, failing to carry his shield while armed, and wrongfully displaying his Department parking plaque.

For your consideration.



David S. Weisel
Assistant Deputy Commissioner Trials